

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aiyanna Milligan	Team: Squad #06	CCRB Case #: 201703794	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 05/11/2017 1:35 PM	Location of Incident: 91st Street and 3rd Avenue	18 Mo. SOL 11/11/2018	Precinct: 68		
Date/Time CV Reported Fri, 05/12/2017 12:28 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Fri, 05/12/2017 1:34 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Richard Galletta	07699	951753	068 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Richard Galletta	Abuse: Police Officer Richard Galletta threatened to arrest § 87(2)(b)			A . Exonerated	
B . POM Richard Galletta	Discourtesy: Police Officer Richard Galletta acted discourteously toward § 87(2)(b)			B . Unsubstantiated	

Case Summary

On May 12, 2017, § 87(2)(b) filed this complaint in-person with PO Stephanie Santiago of the 68th Precinct. On that same day, the complaint was received at the CCRB.

On May 11, 2017, at approximately 1:35 PM, PO Richard Galletta of the 68th Precinct stopped § 87(2)(b)'s vehicle at the intersection of 91st Street and 3rd Avenue in Brooklyn. § 87(2)(b) was on her way to pick up her husband, § 87(2)(b). § 87(2)(b) provided her license and as PO Galletta waited for § 87(2)(b) to produce her registration, he noticed a laminated New Jersey Police Department Honor Legion Member Card, which belongs to § 87(2)(b) on the vehicle's dashboard. PO Galletta asked what the member card was and § 87(2)(b) handed it to him. PO Galletta informed § 87(2)(b) that it was a felony to have the member card in her vehicle and he could have her arrested (**Allegation A**). PO Galletta then threw the member card into § 87(2)(b)'s vehicle, which landed on the dashboard (**Allegation B**).

PO Galletta subsequently issued § 87(2)(b) three summonses: failure to wear a seatbelt, failure to provide proof of registration, and use of a portable electronic device while § 87(2)(b)'s vehicle was in motion (BR 12).

There is no video footage of the incident. Photographs of the member card were taken by PO Galletta during the incident, with his department-issued cellphone, and can be found in IA 80 (BR 07).

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation over the phone, but opted for an investigation § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of June 27, 2017, there were negative results for any notice of claim filed for this incident (BR 02).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (BR 03).
- PO Galletta has been a member of the NYPD for five years and has had five other CCRB allegations pleaded against him in three cases, three of which have outcomes that are pending. None of PO Galletta's prior CCRB allegations were substantiated § 87(2)(g)

Potential Issues

During the incident, § 87(2)(b) contacted § 87(2)(b) via phone and asked him to come to the scene (BR 05). In addition, PO Galletta requested a unit to back him (BR 06). According to a phone call placed to § 87(2)(b) on June 6, 2017, § 87(2)(b) did not witness any allegations and responded to the scene after the member card was allegedly thrown into the vehicle. This was reiterated in her phone statement and CCRB testimony, during which she stated both § 87(2)(b) and the responding officers arrived on scene after the alleged threat of arrest and discourteous action occurred.

Findings and Recommendations

Allegation A - Abuse of Authority: Police Officer Richard Galletta threatened to arrest

§ 87(2)(b)

It is undisputed that PO Galletta informed § 87(2)(b) that she could be arrested.

§ 87(2)(b) testified that she was on her way to pick up § 87(2)(b) and go to a dentist appointment when she was pulled over by PO Galletta, who was not assigned a partner. PO Galletta exited his patrol car and approached the front passenger's side of her vehicle. § 87(2)(b) provided PO Galletta with her license, but mistakenly provided him with her insurance card. As PO Galletta waited for her to produce her registration, he noticed an 8.5" x 11", laminated New Jersey Police Department Honor Legion Member Card on the vehicle's dashboard. PO Galletta asked what the member card was and § 87(2)(b) handed it to him. PO Galletta informed § 87(2)(b) that it was a felony to have the member card in her vehicle and he could have her arrested (BR 05).

PO Galletta testified that as he travelled southbound on 3rd Avenue, he observed § 87(2)(b)'s vehicle at 78th Street travelling northbound at a speed of at least 25 MPH. § 87(2)(b) was not wearing a seatbelt and had an electronic device in her right hand. PO Galletta was unable to catch up to § 87(2)(b)'s vehicle until 91st Street. When § 87(2)(b) pulled over, she immediately exited her vehicle, yelled, and asked why she was stopped because she was late for the dentist. PO Galletta ordered § 87(2)(b) back into her vehicle and approached the front passenger's side of her vehicle. PO Galletta repeatedly asked § 87(2)(b) for her registration, as she continued to provide him with her insurance card. As PO Galletta waited, he noticed the laminated member card on § 87(2)(b)'s dashboard, which § 87(2)(b) handed to him and stated she uses for parking. § 87(2)(b) arrived on the scene shortly after and approached the driver's window of § 87(2)(b)'s vehicle. As PO Galletta initially did not know who § 87(2)(b) was and § 87(2)(b) continued to exit her vehicle numerous times, PO Galletta called for backup. PO Joseph Guarino and PO Mark Zimmerman responded. Once PO Galletta finished writing the summonses he spoke with § 87(2)(b) who reiterated that he uses the member card as a parking placard. § 87(2)(b) remained irate throughout the incident.

PO Galletta informed § 87(2)(b) that the member card is not intended to be used as a parking placard and § 87(2)(b) was in violation of New York State Vehicle & Traffic Law § 396 (2). PO Galletta also informed § 87(2)(b) that she could be arrested for Obstructing Governmental Administration or Disorderly Conduct for not complying with his commands to reenter her vehicle (BR 06).

The 8.5" x 11" laminated card was a New Jersey Police Department's Honor Legion Member Card with "President Michael Manzo" notated and "§ 87(2)(b)" listed on the rear (BR 07).

New York State Vehicle & Traffic Law § 396 (2) states that the unauthorized display of police insignia and the use or display of any sign indicating use by a police department on any motor vehicle not actually operated by anyone who is a member or employee of a police department is a traffic infraction (BR 08). New York State Penal Law § 195.05 states that a person is guilty of obstructing governmental administration, which is a class A misdemeanor, when he or she intentionally interferes with the administration of law or other governmental function or prevents a public servant from performing an official function (BR 09). New York State Criminal Procedure Law § 140.10 states a police officer may arrest a person, without a

warrant, for any offense he or she has reasonable cause to believe that person has committed in his or her presence (BR 10).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Exonerated**.

Allegation B - Discourtesy: Police Officer Richard Galletta acted discourteously toward

§ 87(2)(b)

§ 87(2)(b) testified that before § 87(2)(b) PO Guarino, and PO Zimmerman arrived on scene, PO Galletta returned the member card to her by throwing it into § 87(2)(b)'s vehicle. The member card landed on the dashboard. PO Galletta informed § 87(2)(b) that he would forget he saw it and returned to his vehicle, where he wrote out the summonses. Afterwards, § 87(2)(b) and the responding officers arrived on the scene. § 87(2)(b) PO Guarino, and PO Zimmerman stood in the street, in between PO Galletta's patrol car and § 87(2)(b)'s vehicle, and spoke (BR 05).

PO Galletta testified that he approached the driver's side window of § 87(2)(b)'s vehicle, warned and admonished § 87(2)(b) for the placard and for traveling at a speed that was not reasonable and prudent, returned the Honor Legion member card and § 87(2)(b)'s license, and handed her three summonses. When PO Galletta passed the member card to § 87(2)(b) she accepted it in her hand. PO Galletta did not throw or fling the member card into § 87(2)(b)'s vehicle. At the time he returned the member card, § 87(2)(b) PO Guarino, and PO Zimmerman were engaged in a conversation approximately one and a half car lengths away from § 87(2)(b)'s vehicle (BR 06).

§ 87(2)(g)

§ 87(2)(b) stated PO Galletta returned the member card to her by throwing it into her vehicle before anyone else responded to the incident location. PO Galletta stated that towards the end of the incident, while § 87(2)(b) PO Guarino, and PO Zimmerman were involved in a discussion a considerable distance away, he returned the member card to § 87(2)(b) who received it in her hand. In both instances, neither § 87(2)(b) nor the responding officers would have been in a physical position to attest to the manner in which the member card was returned. The investigation does not have video evidence.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Unsubstantiated**.

Squad: **6**

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date